OFFICE OF THE REGISTRAR
UNIVERSITY OF MALAKAND
(ESTABLISHMENT SECTION)

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No. **UOM/Estt/24/1128** Dated: **05-Nov-2024**

NOTIFICATION

It is notified for the information of all concerned that in compliance to the Higher Education Department, Peshawar Notification issued vide No.SO(G)/HED/2-2/2023/Harassment dated 23-Oct-2024 (**copy enclosed**) regarding Higher Education Commission Policy on protection against sexual harassment in Higher Education Institutions (effective since 01-07-2020) is for strict compliance in true letter and spirit.

Moreover, Non-compliance of the aforesaid enactments shall lead to disciplinary action against the concerned under the Employees Efficiency and Discipline Statutes in vogue.

Additional Registrar (Establishment)

Copy for information and necessary action (if any) to:

1. The Deans of all Faculties
2. The Heads of all Teaching Departments/Administrative Sections/Offices
3. The Director IT with the request to upload this Circular along with the attached notification/instructions/guidelines on the UOM website for easy access and publicity at large.
4. PS to Vice-Chancellor
5. PA to Registrar
6. Relevant File

Additional Registrar (Establishment)

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GOVT. OF KHYBER PAKHTUNKHWA
HIGHER EDUCATION, ARCHIVES & LIBRARIES DEPARTMENT

(213)

Dated Peshawar on October 23, 202

NOTIFICATION

NO.SO(G)/HED/2-2/2023/Harassment: In compliance with the protectior against harassment of Women at Workplace Act 2010 duly amended in 2012, Highe Education Commission policy on protection against sexual harassment in higher educatior institutions (effective since 01-07-2020), international declarations, conventions, and treaties, and to promote a safe and respectful learning environment and mitigate the risk of harassment and assault involving male faculty and staff, the management of both public and private sector educational institutions shall implement the following instructions/guidelines with immediate effect.

1. **General Guidelines**
   a. The Protection Against Harassment of Women at the Workplace Act, 2010, and the Higher Education Policy on Protection Against Sexual Harassment in Higher Education Institutions shall be strictly enforced in their entirety, ensuring full compliance with all legal provisions and mandates therein.
   b. Educational institutions shall cultivate and maintain a culture rooted in respect, accountability, and the strictest adherence to a policy of zero tolerance for harassment. All members of the institution are obligated to actively contribute to creating and sustaining a safe, inclusive, and supportive environment, with any failure to do so subject to disciplinary measures in accordance with institutional regulations and applicable law.
   c. It is hereby mandated that a minimum of two female faculty members shall be present on the premises of female educational institutions during operational hours and until such time as the last female student has vacated the premises.
   d. In the event that a female hostel facility is provided, it is required that a female warden and supporting staff be present on-site at all times (24/7). Male personnel shall be strictly restricted to areas designated for their access and duties, and shall not be permitted in any female-designated areas of the hostel
   e. The Head of each educational institution is required to designate separate areas for male and female staff to engage with students. These areas must be clearly demarcated and shall be monitored through appropriate surveillance measures to ensure compliance and maintain security
   f. Teaching and non-teaching staff are strictly prohibited from meeting female students in isolated or unmonitored areas. The Head of the institution shall designate and notify specific areas for such meetings, which must be clearly communicated to all staff and students to ensure compliance.

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g. The use of cell phones by Class-IV staff and students within the premises of the institution is strictly prohibited.

h. Educational institutions shall cultivate and maintain a culture rooted in respect, accountability, and the strictest adherence to a policy of zero tolerance for harassment.

I. All members of the institution are obligated to actively contribute to creating and sustaining a safe, inclusive, and supportive environment, with any failure to do so subject to disciplinary measures in accordance with institutional regulations and applicable law without fear of retaliation.

2. Interaction Protocols

a. The Head of the institution shall ensure the permanent deployment of female faculty or staff members at designated locations to accompany female students during interactions with male staff. It is further mandated that all meetings or interactions between male faculty/staff and female students must take place in the presence of a female faculty or staff member.

b. Formal meetings, guidance or counseling sessions, or any academic interactions between male staff and female students shall require prior approval from the relevant Head of Department or Dean. Such meetings must take place only within designated, notified areas, and under no circumstances shall they occur outside these approved locations.

c. A record of all interactions between students and staff shall be maintained. Female students are required to log the date, time, and purpose of their visit prior to meeting with a male faculty member. Additionally, no female student shall visit the administration wing without prior approval from the Head of Department

d. Information/Form submission/receiving desk to be accessible/visible to students/public.

e. Male Class-IV staff and security personnel are strictly prohibited from engaging in any direct interaction with students

3. Faculty/Staff Responsibilities

a. Faculty members are mandated to remain on campus until the departure of the last student, ensuring that students have access to necessary support, guidance, and supervision as required.

b. Faculty and staff are under a strict duty to promptly report any suspicious behavior or concerns related to student safety to the administration. This includes the mandatory completion of incident reports and active participation in follow-up discussions to address identified issues in a timely manner.

c. Faculty members are obligated to actively engage in activities and discussions that promote inclusivity and mutual respect among students. This duty includes, but is not limited to, integrating educational discourse on topics such as consent, boundaries, and appropriate behavior into the curriculum, and fostering an open, communicative classroom environment.

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d. Faculty members are required to conduct regular check-ins with students, particularly those in vulnerable or at-risk situations, to assess their well-being and provide a supportive, proactive presence. Such engagement is essential in identifying potential issues at an early stage and reinforcing a culture of care within the institution.

e. Faculty and staff are required to undergo mandatory, recurrent training sessions on harassment prevention, conflict resolution, and cultural competency, to ensure they are fully equipped to manage a variety of sensitive situations with the highest level of professionalism and care.

f. Faculty members must be well-informed of available student resources, including counseling services, support groups, and formal reporting mechanisms. They are further required to actively promote these resources to ensure students are fully aware of how and where to seek help when necessary.

4. **Campus Security**

a. Closed-circuit television (CCTV) cameras shall be installed in all common areas, female hostels, and designated faculty/staff interaction desks or areas to ensure comprehensive surveillance and enhance the safety and security of all individuals. The installation and monitoring of these cameras must be conducted in compliance with applicable privacy laws and institutional regulations, and any footage obtained shall be handled with the utmost confidentiality, accessible only to authorized personnel for official purposes.

b. Round-the-clock security personnel shall be deployed in all non-student areas to ensure continuous surveillance and protection. The presence of security personnel must be maintained at all times, with strict adherence to duty schedules and protocols, to prevent unauthorized access and safeguard institutional property. Failure to ensure consistent security coverage will result in immediate administrative action in accordance with institutional policies and applicable law.

c. Regular security audits shall be conducted to assess the effectiveness of current safety measures and identify potential vulnerabilities within the institution. These audits must be comprehensive, systematic, and carried out by qualified personnel, with findings promptly reported to the administration. Any deficiencies identified during the audits must be addressed immediately, and corrective actions shall be implemented to ensure ongoing compliance with safety standards and regulations.

Security Guard Protocols

a. Security guards' presence in student areas shall be strictly limited, except in cases of emergencies or when explicitly authorized by the administration. This restriction is intended to preserve the privacy and autonomy of students while maintaining a safe environment. Any breach of this restriction without proper cause will be subject to disciplinary action in accordance with institutional guidelines.

b. Security guards shall be subjected to thorough background checks prior to employment to ensure their suitability for safeguarding the institution. Additionally, all security personnel must undergo mandatory and comprehensive training on harassment prevention, conflict resolution, and professional conduct. This training is

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essential to equip them with the knowledge and skills necessary to handle sensitive situations appropriately and to foster a safe and respectful environment for all members of the institution.

c. A formal system for reporting security guard misconduct shall be established and maintained to ensure accountability and transparency. This system must allow for confidential reporting of any inappropriate behavior or breaches of conduct by security personnel, with clear procedures for investigation, documentation, and resolution. All reports of misconduct will be taken seriously, with swift disciplinary action implemented as necessary in accordance with institutional policies and applicable legal frameworks.

6. **Reporting and Response**

a. A dedicated and accessible reporting mechanism for incidents of harassment and assault shall be established to ensure that all complaints are handled with urgency, confidentiality, and care. This mechanism must include multiple channels for reporting, such as an online platform, a designated hotline, and in-person reporting to authorized personnel. A trained committee must promptly investigate all reports, and the reporting process should prioritize the safety, privacy, and well-being of the complainant throughout the entire procedure.

b. Prompt and thorough investigations shall be conducted for all reported incidents of harassment and assault, ensuring that action is taken against perpetrators without undue delay. The investigation process must adhere to established protocols to guarantee fairness and objectivity, with all parties involved treated with respect and confidentiality. Appropriate disciplinary measures will be imposed on those found responsible, in accordance with institutional policies and relevant legal standards, to uphold a safe and supportive environment for all members of the institution.

c. Comprehensive counseling and support services shall be made available for victims of harassment and assault, ensuring that they receive the necessary emotional, psychological, and legal assistance. These services must be easily accessible and include individual counseling, support groups, and crisis intervention, all provided by trained professionals. The institution shall actively promote awareness of these services, ensuring that victims are informed of their rights and the resources available to them in a supportive and confidential environment.

7. **Training and Awareness**

a. Conduct regular workshops/training on harassment prevention for faculty/staff.

b. All faculty and staff are required to participate in regular training sessions focused on harassment prevention, the concept of consent, and appropriate interactions with students. These training programs must be comprehensive and updated regularly to reflect best practices and current legal standards, ensuring that all personnel are equipped with the knowledge and skills necessary to foster a safe and respectful educational environment.

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c. Ongoing awareness campaigns shall be conducted to educate the campus community about the critical importance of mutual respect and the recognition of inappropriate behavior. These campaigns must employ a variety of communication methods, including workshops, seminars, and informational materials, to effectively engage all members of the institution and promote a culture of safety, respect, and accountability

d. Organize awareness campaigns for students.

e. Policy posters and informational materials outlining the institution's stance on harassment, the available reporting mechanisms, and the resources for support shall be prominently displayed throughout the campus. These materials must be clear, accessible, and regularly updated to ensure that all members of the community are informed of their rights and responsibilities. The strategic placement of these posters in high-traffic areas will serve to reinforce the institution's commitment to creating a safe and respectful environment for all.

8. **Monitoring and Compliance**

a. Vigilance committee to be constituted (the Head of the Institution should be its chairman) in each institution and this committee will be empowered to eradicate harassment and any such incident of harassment if observed by anyone in the Institutions should immediately be reported to any Member/Chairman of the vigilance committee.

b. Telephone/Cell No. of members/Chairman vigilance committee should be displayed in visible places.

c. A Compliance Officer shall be appointed to oversee the implementation of policies pertaining to harassment prevention and response. This individual will be tasked with ensuring compliance with all relevant laws and regulations, monitoring adherence to institutional policies, and providing guidance to faculty, staff, and students regarding their rights and obligations under these policies. The Compliance Officer will also be responsible for facilitating training sessions, managing reporting mechanisms, conducting regular evaluations of policy effectiveness, and fostering a culture of accountability and continuous improvement within the institution.

d. Conduct regular audits to ensure adherence.

e. Take disciplinary action against non-compliant faculty/staff.

9. **Review and Revision**

a. An annual review of the harassment prevention and response policy shall be conducted to assess its effectiveness and relevance. This review must involve input from various stakeholders, including faculty, staff, students, and compliance experts, to ensure comprehensive evaluation and identification of any necessary amendments. The findings and recommendations from this review will be documented and presented to the administration for consideration, with the aim of enhancing the policy's effectiveness and alignment with best practices and legal standards.

b. The harassment prevention and response policy shall be revised as necessary to ensure its ongoing effectiveness and alignment with current legal standards and best practices. Revisions will be based on the findings from the annual review, stakeholder

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feedback, and emerging trends in harassment prevention. All amendments will be documented, communicated to the campus community, and implemented promptly to reinforce the institution's commitment to providing a safe and supportive environment for all members.

10. **Student Committees**

a. Notify and activate existing student committees (e.g., Student Council, Women's Safety Committee) to promote awareness and support.

b. Ensure committee members undergo training on harassment prevention, reporting, and support.

c. Empower committees to:

i. Organize awareness campaigns and events.
ii. Provide peer support and counseling.
iii. Collaborate with faculty/staff on policy implementation.
iv. Report incidents/concerns to the administration.

d. **Notification/Activation Plan:**

i. Inform student committee members about the policy and their roles.
ii. Schedule orientation/training sessions.
iii. Provide necessary resources (e.g., reporting mechanisms, and support services).
iv. Establish regular meetings for progress updates and feedback.

e. **Student Committee Structure:**

i. Women's Safety Committee
ii. Student Council
iii. Harassment Prevention Team
iv. Peer Support Group

f. **Responsibilities:**

i. Promote a zero-tolerance policy for harassment.
ii. Organize awareness campaigns/events.
iii. Provide support/counseling to affected students.
iv. Collaborate with faculty/staff on policy implementation.
v. Report incidents/concerns to the administration.

Note:

By activating and empowering student committees, we foster a collaborative and supportive environment to prevent harassment and ensure student well-being.

11. **Implementation:** These instructions shall take effect immediately. All members of the institution are required to ensure strict compliance with these directives to foster a safe and secure learning environment. Any failure to adhere to these guidelines will result in appropriate disciplinary action, reinforcing our collective commitment to the well-being and safety of all individuals within the campus community

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12. **Acknowledgement**: All educational institutions are required to acknowledge receipt and understanding of these instructions. Confirmation of this acknowledgment must be documented and submitted to the appropriate authority/departments within the institution. This acknowledgment serves to ensure that all stakeholders are informed of their responsibilities in upholding the directives outlined herein and contributing to a safe and secure educational environment.

-Sd-
SECRETARY TO
GOVT. OF KHYBER PAKHTUNKHWA
HIGHER EDUCATION DEPARTMENT

ENDST: NO. & DATE EVEN:

Copy is forwarded to the:

1. Principal Secretary to the Governor/Chancellor, Khyber Pakhtunkhwa.
2. Principal Secretary to the Chief Minister, Khyber Pakhtunkhwa.
3. All Divisional Commissioners, Khyber Pakhtunkhwa.
4. All Vice Chancellors, Public Sector Universities, Khyber Pakhtunkhwa.
5. The PSO to the Chief Minister, Khyber Pakhtunkhwa.
6. The PSO to the Chief Secretary, Khyber Pakhtunkhwa.
7. The Director General, Directorate of Commerce Education.
8. The Director, Directorate of Higher Education.
9. The Chairman, Higher Education Regulatory Authority: With the request to circulate among all private sector Universities & Colleges.
10. The Director, Directorate of Archives & Libraries.
11. The Director (IT), HEMIS Cell, Higher Education Department.
12. PS to the Minister for Higher Education Department.
13. PS to the Secretary Higher Education Department.
14. Master File.

(SIYAR AHMAD KHAN) 23/5/024
SECTION OFFICER (GENERAL)

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